Laboratory for Justice

Jade Beauclair
Ronald E. McNair Scholar

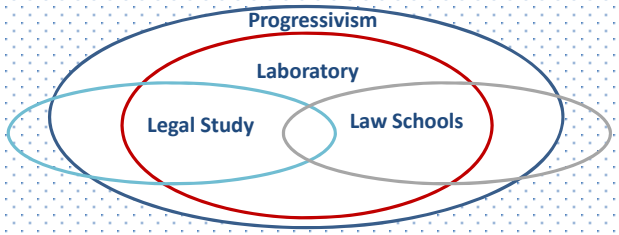
A Contextual Analysis of Legal Experimentation and Pedagogy at Howard University Law School, 1929-1954

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Significance of Study

- Developed historical context for the legal theory & teaching methods to advance Civil Rights
- No full exploration of the Howard Law School as a laboratory in the literature
- Original research on this topic ⟶ critical to understanding how the modern Civil Rights Movement occurred
- Crucial for comprehending how Houston created an army of attorneys who were able to destroy separateness in civil rights cases



Research Questions

- Did Howard Law School serve as a place of legal experimentation for the advancement of civil rights? If so, how?
- Was Howard Law School unique in its pedagogical structure and emphases?

Background

In 1954, an era of brutal racism, an army of attorneys – most of whom were African American – convinced the U.S. Supreme Court to unanimously declare that racial segregation in public schools violated the equal protection guarantees of the Fourteenth Amendment. Nearly all of these attorneys were affiliated in some way with Charles Houston and the Howard University Law School.



Retrieved from: http://www.naacpldf.org/files/imagecache/case_page/case-photos/brown.jpg

Methodology

Case Study
Howard Law School, 1929 – 1954

Content Analysis
Analyze primary, secondary, and tertiary documents relevant to our case study of Howard University's Law School from 1929–1954,
for the purpose of investigating the character, method, and environment of Howard University as it relates to the notion of a law school as a laboratory.

Purposeful Sampling
The lives and recollections of a small group of individuals affiliated with the Brown v. Board of Education case and/or Howard Law School.

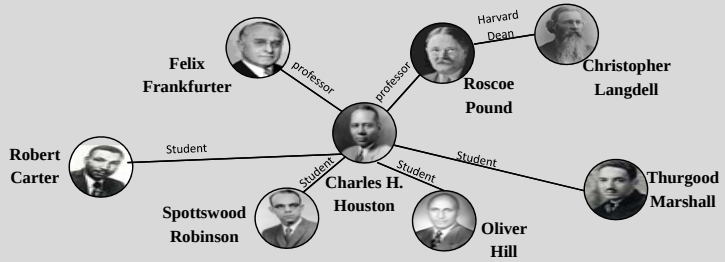
Review of the Literature

1870 Introduction of Case Method at Harvard Law School by Christopher Columbus Langdell as discussed in *Unequal Justice: Lawyers and Social Change in Modern America* – Jerold S. Auerbach,1976
- Moved legal education from the memorization of laws to classroom discussions of the law not isolated from, but in relation with, real life situations in such a way to suggest that laws were changeable to better meet social needs.
- **Law = science; library = laboratory; cases = natural elements**

1906 "The Opportunities and Responsibilities of American Law Schools" – Floyd R. Mechem, Law professor, University of Chicago
- Law teachers ⟶ **scientists** who gathered, sorted & evaluated data to produce legal solutions for social malfunctions

1907 "The Need of a Sociological Jurisprudence" – Roscoe Pound, Dean of Harvard, 1916-1939
- Jurisprudence = **science of law**
- Notes growth of research in other professions and the use of "laboratories"
- Law teachers desiring a "**more scientific treatment of the law**" ; calls for **laboratories dedicated to legal science** (law schools) ; in order to allow legal scholars to obtain data for the average person to understand the law's effects on him
- Duty of law professors to "investigate" sociological foundations of all topics they teach

1915 "The Law and The Law Schools" – Felix Frankfurter, Harvard Professor 1914- 1939
- Legal Realism
- Law is interwoven with the changes in physical, economic, & social aspects of life
- "finished product of law" ⟶ legal means for accommodating the various interests of life
- Need for men who **produce tentative working hypotheses to be tested, revised, & modified**
- Law schools must become an organized place of **experimentation & working out theories**



Conclusions

Did Howard Law School serve as a place of legal experimentation for the advancement of civil rights? If so, how?

YES. Howard Law School actively experimented with methods of connecting the contemporary realities of African American life to legal protections guaranteed in the U.S. Constitution through the application of sociological and realist forms of jurisprudence.

Was Howard Law School unique in its pedagogical structure and emphases?

NO. Howard was **not entirely** unique in its focus on legal experimentation.
Howard's use of experimentation emerged from decades of changes in legal jurisprudence toward more sociological and realist forms. Some other universities were utilizing the classroom as "laboratory."

YES. Howard was the **only** law school of the time that focused primarily on African American civil rights.

Charles Houston was a Transfer Agent
and
Transformative Agent.

Discussion

Use of primary and secondary sources led to new contextual connections between Houston, Howard University, and the broader environments in which they existed.

Limitations of study
- lack of access to some significant primary sources
  - Houston's personal observations
- limited search of other legal theorists' writings

"Law is by no means a fixed science. This need not deter us from the scientific method; it all the more makes scientific treatment our soundest hope."
Felix Frankfurter, "The Law and the Law Schools" 1915

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